



GINGO & BAIR

LAW, LLC

VIA EMAIL: yaniglosc@bbhcsd.org

November 24, 2020

Craig Yaniglos, Treasurer/CFO
Brecksville-Broadview Heights City School District
6638 Mill Road
Brecksville, OH 44141

Re: Confirmation of Engagement

Dear Mr. Yaniglos:

I am pleased that you have asked Gingo & Bair Law, LLC to serve as one of your school district's legal representatives. I am confident the firm will do great work for your students, staff, and community. At the outset of any engagement for legal services, it is appropriate to confirm in writing the nature of the engagement and the terms of the representation, and that is the purpose of this letter. If you have any questions about this letter or anything in it, please do not hesitate to call. Otherwise, this letter will represent the terms of our engagement. Again, I am excited to have the opportunity to serve Brecksville-Broadview Heights City Schools.

Client:

Brecksville-Broadview Heights City School District

Scope of Representation:

Gingo & Bair Law, LLC has been engaged to represent the Brecksville-Broadview Heights City School District Board of Education for the purpose of representing the district on general education law, referred to as the "matter" or "engagement."

Nature of Relationship

The firm's objective is to provide high-quality legal services to clients at a fair, flexible, and reasonable cost. The attorney-client relationship is one of mutual trust and confidence. If you, the Board, or any of your team members have any questions at all concerning the terms of this engagement, my ongoing handling of this engagement, or about any issue relating to a monthly statement that is unclear or appears to be unsatisfactory, I truly invite your inquiries. I want to ensure you have complete confidence in the work provided to your school.

Attorney

I will be the attorney handling this engagement and will be available to the Board, you and your designated team members upon your request, and you can call me at any time for questions and/or advice. Additionally, Attorneys Lindsay Gingo and Sarah Kutscher will also be available for consultation, questions, and advice. Even though you have been delegated certain, clear, and measured levels of authority to act on your district's behalf, there will be times when I will not be able to proceed without your district's full and sometimes written consent, such as when negotiating settlement offers or when conflicts of interest arise. Of course, when those unique situations arise, I will ensure to make you and/or the Board aware of the consent necessary.

Communications

It is important to keep legal communications with the Board, you, and your team confidential. As you know, there are legal reasons for confidentiality such as avoiding risk of inadvertent disclosure or loss of attorney-client privilege. The firm uses secure email and networking to communicate with you and your team and will make every effort to ensure confidential information is protected.

Fees and Expenses

Firm fees will be based primarily on my hourly rate for devoting time to this matter. The firm's standard hourly rate for this engagement will be as included in the Response to Request for Proposals. This rate is subject to periodic change by the firm. The firm also bills for out-of-pocket expenses; the firm will use its best efforts to minimize out-of-pocket expenses. All expenses billed to the district are at actual "out-of-pocket" cost and do not include any mark-up. The firm may forward exceptional expenses, such as court reporter fees, directly to the district for direct processing and payment along with a signed Form W-9. General overhead and administrative costs are considered part of the firm's hourly rate. Therefore, the district will not pay for such costs without prior written approval.

Statements normally will be rendered monthly for work performed and expenses recorded on our books during the previous month. The firm prepares its statement or invoice on the assumption that payment will be received within thirty (30) days of receipt of the same. The signature below indicates an understanding of, and agreement with, the foregoing. To maintain costs and in fairness to other clients that remit payment promptly, the firm reserves the right to decline any continuation of professional legal services to its clients that do not pay within these guidelines and/or without making mutually acceptable arrangements for delayed payments. The district agrees that the firm may, at its election, withdraw from this engagement if the district fails to comply with the terms of this engagement.

Conclusion of Representation; Retention and Disposition of Documents

Unless previously terminated, the firm's representation of the district will terminate upon the conclusion of this matter, a written notice to you that the engagement has concluded, and the mailing of the final statement for services rendered in connection with this matter. Following such termination, any otherwise non-public information you have supplied to the firm which is retained by the firm will be kept confidential in accordance with applicable rules of professional conduct. All documents retained by the firm will be transferred to the person responsible for administering the firm's records retention program. For various reasons, including the minimization of unnecessary storage expenses, the firm reserves the right to destroy or otherwise dispose of any such documents or other materials retained by the firm within a reasonable time after the termination of the engagement but shall ensure such act does not violate applicable records retention policies.

Termination of Legal Services

I am confident that we can work together in a manner that will serve your district well. However, your district is free to terminate the firm's services at any time. In addition, and subject to applicable rules of professional conduct governing attorneys, in the event the firm disagrees on any aspect of this engagement or for other appropriate reasons, the firm has the right to withdraw from further representation. If you elect to terminate this engagement prior to conclusion of the matter, or if the firm elects to withdraw, the district is responsible for paying attorney's fees and expenses accrued through the effective date of the termination of this engagement.

Post-Engagement Matters

You are engaging the firm to provide legal services in connection with a specific matter. After completion of the engagement, there may be changes in applicable laws or regulations, or new legislation or court decisions, which could have an impact upon your district, your district's future rights and liabilities, or the matter for which the firm is engaged. Your district understands and agrees that you are not engaging the



firm to monitor new legislation or court decisions, or changes in laws or regulations, that occur *after* the firm has completed the engagement described above, and you agree that the firm is not responsible for advising you of any such new legislation or court decisions, or changes in laws or regulations.

General Waiver of Conflicts

The firm agrees not to request an advance waiver of conflict from the district and acknowledges that the district will not provide the firm with the same.

Acknowledgement

If you have read, understood, and agree with the terms of the engagement as outlined above, please **sign, scan, and return a copy of this letter to mbair@gingobair.com**. If you would prefer to do so via regular U.S. mail, please let me know and I will promptly send you this letter in hard copy.

Again, I am excited to have this opportunity to work with Brecksville-Broadview Heights City Schools. Please call me if you have any questions or comments now or during the course of my representation.

Very truly yours,

/s/ Megan Bair

Gingo & Bair Law, LLC

Acknowledgement

The foregoing letter accurately state the terms of our engagement of Gingo & Bair Law, LLC to represent the district in connection with the matter and under the circumstances described above.

Brecksville-Broadview Heights City School District
c/o Craig Yaniglos, Treasurer/CFO

Date: _____

